

		to file a motion and have it heard prior to the proposed dismissal date in the notice of settlement. The Court considers the filing of the Notice under penalty of perjury representing the entire case has been settled a misrepresentation to the Court if, indeed, additional law and motion over settlement terms is contemplated, as it apparently was here. Settlement of the “entire case” means just that. Even if the parties had requested the court to reserve jurisdiction under section 664.6, there would be no settlement of attorney fees to enforce, because terms were not originally agreed upon by the parties. (See <i>Levitz v. The Warlocks</i> (2007) 148 Cal.App.4th 531, 535 [“A settlement with open material terms is not a ‘conditional settlement.’ To the contrary, it is not a settlement at all because, like all contracts, it is not binding until the settling parties agree on all its material terms.”].) Further, Plaintiffs “must follow the procedures outlined in [California Rules of Court, rule 3.1385] subdivisions (a) and (b) even if the parties settle the case and agree to dismiss under the provisions of Code of Civil Procedure section 664.6.” (Advisory Com. com., Cal. Rules of Court, rule 3.1385.) And, “Code of Civil Procedure section 664.6 allows for but does not mandate the dismissal of cases with conditional settlements either upon stipulation of the parties or on the court’s own motion. Subdivision (c) provides an alternative process for cases with a conditional settlement in which dismissal is not sought under Code of Civil Procedure section 664.6” (<i>Id.</i>) Because such issues are not material to the motion, the court will not decide whether the misrepresentation is material or potentially subject to sanctions, whether a true settlement or only an agreement to agree was reached, arguments concerning enforceability of the settlement, and/or whether some other procedure was viable. The Court rules only that the chosen course of action was not.
10	24-01438676 <i>Parker vs. General Motors, LLC</i>	1) Demurrer to Amended Complaint 2) Motion to Strike Portions Of Complaint Defendant General Motors, LLC’s Demurrer and Motion to Strike Portions of the Second Amended Complaint (SAC) are CONTINUED to _____. On the Court’s own motion, an Order to Show Cause re: Terminating Sanctions is scheduled for _____. On June 25, 2026, Plaintiff was previously ordered to file the SAC with the Court within 5 days. Plaintiff failed to do so and, thus, has disobeyed a court order. Further, Plaintiff’s failure to do so has wasted this Court’s resources and time and has prevented this case from proceeding.
11	25-01515519 <i>Philip A. Radovic, Executor of the Estate of Igor D. Radovic vs. Erceg</i>	Motion to Compel Arbitration Defendant Luka Erceg’s Motion to Compel Arbitration is GRANTED. Defendant’s request for judicial notice of Court filings is granted.

Legal Standard:

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists,” except under certain situations outlined by statute. (Code Civ. Proc. § 1281.2.)

“There is a public policy in favor of arbitration under federal and state law.” (*McManus v. CIBC World Markets Corp.* (2003) 109 Cal.App.4th 76, 85.) “Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration.” (*United Transportation Union v. S. Cal. Rapid Transit Dist.* (1992) 7 Cal. App. 4th 804, 808.) Accordingly, “the court should order the parties to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute.” (*Id.* [cleaned up]) “[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration.” (*Green Tree Fin. Corp.-Alabama v. Randolph* (2000) 531 U.S. 79, 91.)

“General principles of contract law determine whether the parties have entered a binding agreement to arbitrate.” (*Pinnacle Museum Tower Assn. v. Pinnacle Mkt. Dev. (US), LLC* (2012) 55 Cal. 4th 223, 236.) “Generally, an arbitration agreement must be memorialized in writing.” (*Id.*) “A party’s acceptance of an agreement to arbitrate may be express, as where a party signs the agreement,” but “[a] signed agreement is not necessary, however, and a party’s acceptance may be implied in fact[.]” (*Id.*) “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (*Id.*)

Application:

Plaintiff alleges Defendant’s interference with the estate plan of Plaintiff’s now-deceased uncle, Igor Radovic. Plaintiff generally alleges Defendant abused his position as his elderly uncle’s financial advisor to establish or alter the trust in Defendant’s favor. The primary asset of the Trust was a Schwab investment fund in the amount of approximately \$13 million. (Complaint, ¶ 8.) Plaintiff seeks control of the investment account. (¶¶ 45-46 and Prayer for Relief, ¶ 3.)

Defendant contends arbitration is required regarding any claims regarding the Schwab account. (Erceg Decl., Ex. D.)

The motion was timely served on 2/26/26 by email but no opposition has been filed as of 9/21/26.

The Schwab account agreement signed by decedent and Defendant includes the following clauses:

		“By signing an arbitration agreement, the parties agree as follows: All parties to this Agreement are giving up the right to sue each other in court, including the right to a trial by jury, except as provided by the rules of the arbitration forum in which a claim is filed.” “Any controversy or claim arising out of or relating to (i) this Agreement, any other agreement with Schwab, an instruction or authorization provided to Schwab or the breach of any such agreements, instructions, or authorizations; (ii) the Account, any other Schwab account or Services; (iii) transaction in the Account or any other Schwab account; (iv) or in any way arising from the relationship with Schwab, its parent, subsidiaries, affiliates, officers, directors, employees, agents or service providers (“Related Third Parties”), including any controversy over the arbitrability of a dispute, will be settled by arbitration.” “This arbitration agreement will be binding upon and inure to the benefit of the parties hereto and their respective representatives, attorneys-in-fact, heirs, successors, assigns, and any other persons having or claiming to have a legal or beneficial interest in the Account, including court-appointed Trustees and receivers.” “This arbitration agreement will also inure to the benefit of third party service providers that assist Schwab in providing Services ("Third-Party Service Providers") and such Third-Party Service Providers are deemed to be third-party beneficiaries of this arbitration agreement.” Moving Defendant states that Schwab has already obtained an order to arbitrate in the related Probate Court litigation. The Court takes judicial notice of the Probate Court’s 2/4/26 minute order compelling arbitration of Plaintiff’s third cause of action in that case for double damages, attorney fees, and costs against Schwab, but staying such arbitration while Plaintiff litigates his claims against Defendant Erceg which were not compelled to arbitration. Moving Defendant apparently did not seek to compel arbitration of Plaintiff’s claims against him in the probate case. As decedent’s alleged heir, Plaintiff is bound by the arbitration agreement which was also executed by Defendant as Trustee. Plaintiff has not opposed the motion and fails to meet his burden to show his claims against Defendant in this lawsuit do not fall within the agreement. Therefore, Defendant has established the existence of a binding arbitration agreement and the motion is granted. This action is stayed pending completion of arbitration.
12	23-01302857 <i>Providence Capital Funding, Inc. vs. Team MMJ Trucking LLC</i>	Motion for Summary Judgment and/or Adjudication Motion 1: Motion for Court to Accept Late Filing Defendants’ Motion for Court to Accept Late Filing of Defendants’ Opposition to Plaintiff’s Motion for Summary Judgment is DENIED. Defendants Team MMJ Trucking, LLC, Mike Springer and Tonya Springer move the Court to accept the late filing of their opposition to Plaintiff’s motion for summary judgment or, alternatively, summary adjudication.